

PERFORMANCE AGREEMENT

DirtySnatcha LLC

This Performance Agreement ("Agreement") is made and entered into as of **April 30, 2026** (the "Effective Date"), by and between:

DirtySnatcha LLC ("Artist"),
and
Daniel Nielsen ("Purchaser").

1. ENGAGEMENT

Purchaser hereby engages Artist to perform at the following event:

- **Event Name:** TBA (DirtySnatcha headline performance)
 - **Venue:** Photo City Music Hall
 - **Location:** 543 Atlantic Ave, Rochester, New York 14609
 - **Performance Date:** August 14, 2026
 - **Set Length:** 60 – 90 minutes
 - **Performance Time:** TBA — to be confirmed in writing by Purchaser no later than thirty (30) days prior to the performance date
 - **Advance / Day-of-Show Contact:** Greg Burt — gregphotocity@gmail.com — (716) 946-4332
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2. COMPENSATION

Purchaser agrees to pay Artist a total performance fee of:

\$3,000.00 USD (Flat Fee)

Payment Terms:

- **50% Deposit (\$1,500.00):** Due upon execution of this Agreement to secure the booking
- **50% Balance (\$1,500.00):** Due no later than three (3) business days prior to the performance date via confirmed wire or ACH, or in cash at load-in

The deposit is **non-refundable**, except in the event of cancellation by Artist.

Accepted Payment Methods: Wire transfer, ACH, Zelle (contact@dirtysnatcha.com), or other mutually agreed method.

3. BILLING & MARKETING

Artist shall receive headline billing in all promotional materials.

Purchaser agrees that:

- Artist may request revisions or removal of any promotional material displaying Artist's name or logo at any time
 - Artist may include the event in promotional materials, including tour flyers (Phase 2 / August routing), unless otherwise specified in writing by Purchaser
 - All promotional posts shall tag Artist's official social handles
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4. MARKETING & ADVERTISING COMMITMENT

Purchaser shall allocate a minimum advertising budget of **\$1,000.00 USD** toward the promotion of the event.

Preferred Method:

Purchaser shall remit the \$1,000.00 advertising budget directly to Artist's management within seven (7) days of contract execution. Artist's management will deploy the funds across Meta (Instagram/Facebook), TikTok, and other paid channels using Artist's proprietary audience data, creative assets, and tracking infrastructure (Meta Pixel ID 701854965266742). Artist will provide Purchaser with full campaign reporting (spend, reach, CPT, conversions) at the conclusion of the campaign. No management fee or markup shall be applied — funds pass through 100% to ad spend.

Alternative Method:

If Purchaser elects to manage the advertising in-house, Purchaser shall:

- Tag Artist's official social handles in all promotional posts
- Provide proof of advertising spend (receipts, screenshots, or campaign reports) upon Artist's request
- Submit creative materials to Artist upon request; Artist may require revisions to ensure brand alignment

Failure to meet the committed advertising spend by either method may, at Artist's discretion, trigger renegotiation of performance terms.

5. TECHNICAL REQUIREMENTS

Purchaser shall provide all items outlined in Artist's Technical Rider, including but not limited to:

- Professional sound system appropriate for venue size

- Industry-standard CDJs (CDJ-3000 or CDJ-2000NXS2)
- DJ mixer (DJM-900NXS2 or equivalent)
- Proper staging, monitoring, and power supply

A complete **production specification sheet** must be provided to Artist no later than fourteen (14) days prior to the event.

6. HOSPITALITY

Purchaser shall provide:

- **Guest list:** twenty (20) comp spots
- Secure backstage / green room area
- Bottled water and basic non-alcoholic beverages
- Clean towels

Additional hospitality items may be requested by Artist in advance and provided at Purchaser's reasonable discretion.

7. TRAVEL

Travel and lodging are not included in the flat performance fee. Hotel accommodations are not provided by Purchaser for this engagement. Any additional travel arrangements (airfare, ground transportation) shall be agreed upon separately in writing.

8. MERCHANDISE

Artist shall retain one hundred percent (100%) of all merchandise sales revenue for the engagement.

Artist or Artist's designated representative shall handle all merchandise sales. **No venue commission, hall fee, percentage, or seller fee shall apply.**

9. CANCELLATION

By Purchaser:

- Deposit is non-refundable
- If cancellation occurs within fourteen (14) days of the event, the full performance fee becomes due

By Artist:

Artist may, at its sole discretion, offer a mutually agreeable reschedule date within twelve (12) months. If reschedule is offered and accepted by Purchaser, no refund shall apply and this Agreement shall continue in force for the new date. If reschedule is declined or not offered, all payments received from Purchaser shall be refunded to Purchaser. Artist shall not be liable for any additional damages beyond amounts received.

Force Majeure:

Neither party shall be liable for failure to perform due to events beyond their reasonable control, including but not limited to acts of God, weather, government restrictions, or public health emergencies.

10. RECORDING & CONTENT

Purchaser shall not record, stream, or broadcast Artist's performance without prior written consent.

Artist retains all rights to:

- Name
- Likeness
- Performance recordings

Artist reserves the right to capture audio and video of the performance for promotional and archival use.

11. INDEPENDENT CONTRACTOR

Artist is engaged as an independent contractor. Nothing in this Agreement shall be deemed to create any partnership, joint venture, or employment relationship.

12. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of the State of **New York**.

13. ENTIRE AGREEMENT

This Agreement constitutes the entire understanding between the parties and supersedes all prior agreements, negotiations, offer sheets, or understandings, whether written or oral.

14. SIGNATURES

ARTIST

DirtySnatcha LLC

Name: Leigh Bray

Signature: _____

Date: _____

PURCHASER / PROMOTER

Name: Daniel Nielsen

Signature: _____

Date: _____